Alabama Rules of Appellate Procedure

Rule 9.

Release in criminal cases.

(a) *Review of orders respecting release entered prior to a judgment of conviction.* A review authorized by law from an order refusing or imposing conditions of release shall be determined promptly. Upon entry of an order refusing or imposing conditions of release, the trial court shall state in writing the reasons for the action taken. The review shall be heard without the necessity of briefs upon such papers, affidavits and portions of the record as the parties shall present. The appellate court may order the release of the appellant pending the review.

(b) *Release pending appeal from a judgment of conviction.* Release after judgment of conviction shall be governed by Code of Alabama, § 12-22-170.

Committee Comments

Rule 9(a) is essentially identical to FRAP 9(a). Subdivision (b) will continue Alabama practice for release after judgment under Code of Ala., § 1222-170.